

NOVO NORDISK INC. et al v. APOTEX INC.

Plaintiff:	NOVO NORDISK INC. and NOVO NORDISK A/S
Defendant:	APOTEX INC.
Case Number:	1:2026cv06553
Filed:	June 4, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Renee Marie Bumb
Referring Judge:	Ann Marie Donio
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Date Filed	Document Text
June 12, 2026	Filing 8 ORDER CONSOLIDATING CASES FOR ALL PURPOSES; The deadline for the parties to file any responsive pleadings shall be in accordance with the Letter Order dated May 19, 2026 (Civil Action No. 1:24-cv-09729, ECF No. 135); All filings in the Consolidated Actions shall use the caption of the Lead Action; All filings going forward shall be filed in the Lead Action (Civil Action No. 1:24-cv-09729), and Civil Action No. 1:26-cv-06553 shall be administratively terminated by the Clerk's office; By no later than June 23, 2026, Plaintiffs shall file a consolidated amended complaint which sets forth the claims in the Rybelsus Tablet Litigation, Ozembic Tablet Litigation, and Wegovy Tablet Litigation in a single pleading. Signed by Chief Judge Renee Marie Bumb on 6/12/2026. (mj)
June 11, 2026	Filing 7 Letter from Liza M. Walsh to the Hon. Ann Marie Donio, U.S.M.J. encl. Proposed Order Consolidating Cases for All Purposes. (Attachments: #1 Text of Proposed Order)(WALSH, LIZA)

Date Filed	Document Text
June 9, 2026	Filing 6 NOTICE of Appearance by LAUREN RUTH MALAKOFF on behalf of NOVO NORDISK A/S, NOVO NORDISK INC. (MALAKOFF, LAUREN)
June 9, 2026	Filing 5 NOTICE of Appearance by JESSICA K. FORMICHELLA on behalf of NOVO NORDISK A/S, NOVO NORDISK INC. (FORMICHELLA, JESSICA)
June 5, 2026	Filing 4 SUMMONS ISSUED as to APOTEX INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (dnw)
June 5, 2026	Filing 3 AO120 Patent/Trademark Form filed. (Attachments: #1 Complaint, #2 Exhibit 1, #3 Exhibit 2, #4 Exhibit 3, #5 Exhibit 4, #6 Exhibit 5, #7 Exhibit 6, #8 Exhibit 7, #9 Exhibit 8) (dnw)
June 5, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (dnw)
June 4, 2026	Chief Judge Renee Marie Bumb and Magistrate Judge Ann Marie Donio added. (dmw)
June 4, 2026	Filing 2 Corporate Disclosure Statement by NOVO NORDISK A/S, NOVO NORDISK INC.. (WALSH, LIZA)
June 4, 2026	Filing 1 COMPLAINT against APOTEX INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17504614) , Related Case Selected, filed by NOVO NORDISK INC., NOVO NORDISK A/S. (Attachments: #1 Exhibit 1, #2 Exhibit 2, #3 Exhibit 3, #4 Exhibit 4, #5 Exhibit 5, #6 Exhibit 6, #7 Exhibit 7, #8 Exhibit 8, #9 Civil Cover Sheet, #10 AO 120 Form)(WALSH, LIZA)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Novo Nordisk Inc. (Delaware) and Novo Nordisk A/S (Denmark)
Defendant:	Apotex Inc. (Canada)
Plaintiff's Counsel:	Walsh Pizzi O'Reilly Falanga LLP
Case Identification:	1:26-cv-06553 , D.N.J., 06/04/2026
Venue Allegations:	Venue is alleged to be proper as Defendant Apotex is a foreign corporation and because it conducts business in New Jersey, has previously consented to jurisdiction in the district, and intends to market and sell the accused product in New Jersey.
Core Dispute:	Plaintiff alleges that Defendant's Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's WEGOVY® (semaglutide) tablets infringes seven U.S. patents covering the drug's composition, formulation, and methods of use.
Technical Context:	The lawsuit concerns oral formulations of semaglutide, a glucagon-like peptide-1 (GLP-1) receptor agonist used for chronic weight management, a class of drugs previously administered primarily via injection.
Key Procedural History:	The complaint notes that the asserted patents are also the subject of another pending litigation between the same parties in the District of New Jersey, Novo Nordisk Inc. et al. v. Apotex Inc. , No. 24-9729-RMB-AMD (D.N.J.) (consolidated). This indicates an ongoing and broader dispute over the same intellectual property.

Case Timeline

Date	Event
2010-12-16	Earliest Priority Date for '123 and '957 Patents
2012-06-21	Earliest Priority Date for '499 Patent
2013-05-02	Earliest Priority Date for '923 and '739 Patents
2016-03-08	'123 Patent Issued
2018-02-02	Earliest Priority Date for '248 and '953 Patents
2019-05-07	'923 Patent Issued
2021-06-15	'499 Patent Issued
2022-07-12	'957 Patent Issued
2023-12-05	'248 Patent Issued
2025-03-04	'739 Patent Issued
2025-08-26	'953 Patent Issued

Date	Event
2026-04-29	Plaintiff receives notice of Defendant's ANDA filing
2026-06-04	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 9,278,123 - "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid," Issued March 8, 2016

The Invention Explained

Problem Addressed: The patent addresses the significant challenge of administering peptide and protein drugs, such as GLP-1 agonists, via the oral route due to enzymatic degradation in the gastrointestinal tract and poor absorption through the intestinal mucosa ^{'123}

^{Patent, background section}

The Patented Solution: The invention is a solid pharmaceutical composition for oral administration that combines a GLP-1 agonist with an absorption enhancer, specifically a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid (SNAC) ^{'123 Patent, abstract}. This combination is designed to protect the peptide from degradation and facilitate its absorption into the bloodstream ^{'123 Patent, col. 11:21-31}

Technical Importance: This technology represents a method to convert an injectable biologic drug into an oral tablet, a major goal in pharmaceutical development sought for improving patient convenience and compliance.

Key Claims at a Glance

The complaint asserts dependent claim 9, which relies on independent claim 1 ^{Compl. ¶61}

The essential elements of independent claim 1 and dependent claim 9 are:

A solid composition for oral administration, comprising:

a GLP-1 agonist,

a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid (SNAC), and

at least one excipient selected from the group consisting of a lubricant, binder, and filler;

wherein the GLP-1 agonist is semaglutide (added by claim 9); and

wherein the composition comprises at least 60% (w/w) of said salt of SNAC (added by claim 9).

The complaint reserves the right to assert other claims ^{Compl. ¶21}

U.S. Patent No. 10,278,923 - "Oral Dosing of GLP-1 Compounds," Issued May 7, 2019

The Invention Explained

❑ **Problem Addressed:** The patent background notes the general difficulty of oral peptide administration and highlights a need for improved methods that provide acceptable variability in plasma concentration '923 Patent, col. 1:21-33

❑ **The Patented Solution:** The invention is a method of treatment using a specific oral dosing regimen for a long-acting GLP-1 peptide. It claims that administering the peptide more frequently than its long half-life would suggest (e.g., daily dosing for a peptide with a multi-day half-life) surprisingly reduces the variability in its plasma concentration '923 Patent, col. 2:34-45 The patent claims a method where the ratio of the peptide's plasma half-life (in days) to the dosing interval (in days) is greater than 2:1 '923 Patent, claim 14

❑ **Technical Importance:** Reducing inter-patient and intra-patient variability in drug exposure can lead to more predictable therapeutic effects and a better safety profile, which is critical for chronically administered drugs.

Key Claims at a Glance

❑ The complaint asserts independent claim 14 Compl. ¶86

❑ The essential elements of independent claim 14 are:

❑ A method for treating diabetes and/or obesity in a subject, comprising:

❑ orally administering to said subject a therapeutically effective amount of a solid oral dosage form composition comprising:

❑ a GLP-1 peptide from a group including semaglutide and having a plasma half-life in humans of at least 60 hours, and

❑ an enhancer that is a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid (SNAC);

❑ wherein the composition is administered such that the ratio between the plasma half-life in days of the peptide and the dosing interval in days is more than 2:1.

❑ The complaint reserves the right to assert other claims Compl. ¶22

U.S. Patent No. 11,033,499 - "Tablet Formulation Comprising a GLP-1 Peptide and a Delivery Agent," Issued June 15, 2021

❑ **Patent Identification:** U.S. Patent No. [11,033,499](#), "Tablet Formulation Comprising a GLP-1 Peptide and a Delivery Agent," Issued June 15, 2021 Compl. ¶34

❑ **Technology Synopsis:** This patent claims a tablet with specific physical characteristics. It addresses the problem of achieving sufficient bioavailability for oral peptides by defining properties like bulk density, pore diameter, crushing strength, and disintegration time, which are disclosed to be critical for optimal drug release and absorption '499 Patent, abstract '499 Patent, col. 3:3-10

❑ **Asserted Claims:** At least claim 1 Compl. ¶109

❑ **Accused Features:** The physical properties of Apotex's proposed generic tablet, which are alleged to be identical or substantially identical to those of WEGOVY® tablets Compl. ¶¶106-108

U.S. Patent No. 11,382,957 - "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid," Issued July 12, 2022

Patent Identification: U.S. Patent No. [11,382,957](#), "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-hydroxybenzoyl)Amino)Caprylic Acid," Issued July 12, 2022 **Compl. ¶37**

Technology Synopsis: This patent, similar to the '123 Patent, claims a solid oral composition containing semaglutide and a high concentration (at least 60% w/w) of a SNAC salt. It further specifies the presence of at least one excipient from the group of a lubricant, binder, or filler **'957 Patent, claim 1** This patent appears to be a continuation of the '123 patent family, further securing the core formulation.

Asserted Claims: At least claim 1 **Compl. ¶131**

Accused Features: The formulation of Apotex's proposed generic product, which is alleged to contain semaglutide, a salt of SNAC, and an excipient (magnesium stearate) in the claimed proportions (Compl. ¶¶124; **Compl. ¶128**).

U.S. Patent No. 11,833,248 - "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid," Issued December 5, 2023

Patent Identification: U.S. Patent No. [11,833,248](#), "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-hydroxybenzoyl)Amino)Caprylic Acid," Issued December 5, 2023 **Compl. ¶40**

Technology Synopsis: This patent claims a very specific formulation "consisting essentially of" semaglutide, magnesium stearate, and SNAC. The "consisting essentially of" language is intended to exclude other ingredients, such as binders or fillers, that would materially affect the invention's properties. It also claims a specific ratio of magnesium stearate to SNAC **'248 Patent, claim 1**

Asserted Claims: At least claim 1 **Compl. ¶154**

Accused Features: The minimalist formulation of Apotex's proposed product, which is alleged to contain only semaglutide, SNAC, and magnesium stearate, thereby infringing the restrictive "consisting essentially of" claim (Compl. ¶¶147; **Compl. ¶151**).

U.S. Patent No. 12,239,739 - "Oral Dosing of GLP-1 Compounds," Issued March 4, 2025

Patent Identification: U.S. Patent No. [12,239,739](#), "Oral Dosing of GLP-1 Compounds," Issued March 4, 2025 **Compl. ¶43**

Technology Synopsis: This patent claims a method for treating type 2 diabetes or reducing body weight by administering a composition of semaglutide and SNAC daily for 70 days. The key feature is the reduction in variability of plasma exposure compared to a single dose **'739 Patent, claim 1** This is related to the '923 Patent but specifies a particular duration and outcome.

Asserted Claims: At least claim 1 **Compl. ¶179**

Accused Features: The instructions on Apotex's proposed label, which allegedly direct daily administration for treating obesity, thereby inducing infringement of the claimed method **Compl. ¶¶170-172 Compl. ¶176**

U.S. Patent No. 12,396,953 - "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid," Issued August 26, 2025

Patent Identification: U.S. Patent No. [12,396,953](#), "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-hydroxybenzoyl)Amino)Caprylic Acid," Issued August 26, 2025 [Compl. ¶46](#)

Technology Synopsis: This patent claims a composition comprising semaglutide, SNAC, and magnesium stearate, with specific concentration ranges for the components. A key limitation is that the SNAC constitutes at least 95% (w/w) of the total excipients, suggesting an invention focused on a highly pure formulation where SNAC is the dominant non-active ingredient ['953 Patent, claim 1](#)

Asserted Claims: At least claim 1 [Compl. ¶202](#)

Accused Features: The alleged composition of Apotex's product, which is purported to have a formulation where SNAC is the primary excipient, matching the patent's high-purity requirement ([Compl. ¶¶195](#); [Compl. ¶199](#)).

III. The Accused Instrumentality

Product Identification

The accused instrumentality is Apotex's ANDA Product, a proposed generic version of Novo Nordisk's WEGOVY® (semaglutide) tablets in 1.5 mg, 4 mg, and 9 mg dosage strengths for oral administration [Compl. ¶14](#)

Functionality and Market Context

The complaint alleges that the accused product is a solid oral tablet containing the GLP-1 receptor agonist semaglutide as the active ingredient ([Compl. ¶¶14](#); [Compl. ¶54](#)). Its purpose is to treat obesity and reduce cardiovascular risk by mimicking the effects of the natural GLP-1 hormone [Compl. ¶8](#). The complaint alleges that Apotex's product is intended to be a lower-cost, bioequivalent substitute for WEGOVY® tablets, and that its proposed labeling and composition will essentially copy Novo Nordisk's brand-name product ([Compl. ¶¶16](#); [Compl. ¶58](#)). The complaint includes a visual representation of the chemical structure of semaglutide, the active ingredient in both WEGOVY® and the accused product [Compl. p. 4, Figure 1](#)

IV. Analysis of Infringement Allegations

'123 Patent Infringement Allegations

Claim Element (from Independent Claim 1 and Dependent Claim 9)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A solid composition for oral	Apotex's ANDA Product is described as	¶14	col. 12:40-

Claim Element (from Independent Claim 1 and Dependent Claim 9)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
administration...	tablets for oral use.		44
...comprising a GLP-1 agonist...	The active ingredient in Apotex's ANDA Product is semaglutide, a GLP-1 agonist.	¶54	col. 11:7-11
...wherein the GLP-1 agonist is semaglutide...	The active ingredient is identified as semaglutide.	¶54	col. 11:43-49
...a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid...	Apotex's product contains the inactive ingredient salcaprozate sodium (SNAC), which is a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid.	¶54	col. 11:51-53
...and at least one excipient selected from the group consisting of a lubricant, binder, stearate, which is a lubricant, and filler...	Apotex's product contains magnesium	¶54	col. 12:59-62
...wherein the composition comprises at least 60% (w/w) of said salt...	The complaint alleges Apotex's ANDA product is identical or substantially identical to the WEGOVY® tablet composition, which is covered by claim 9.	¶58	col. 12:20-24

'923 Patent Infringement Allegations

Claim Element (from Independent Claim 14)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method for treating diabetes and/or obesity...	The proposed label for Apotex's product allegedly instructs its use for reducing excess body weight in adults with obesity or overweight.	¶78	col. 3:42-45
...comprising orally administering to said subject a therapeutically effective amount of a solid oral dosage form	The product is an oral tablet to be administered once daily.	¶77	col. 2:10-14

Claim Element (from Independent Claim 14)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
composition...			
...comprising a GLP-1 peptide that is from a group including semaglutide and has a plasma half-life in humans of at least 60 hours...	The active ingredient is semaglutide, which the WEGOVY® label states has a half-life of approximately one week (168 hours).	¶76; ¶80	col. 2:14-16; col. 5:29-33
...an enhancer that is a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid...	The product contains salcaprozate sodium (SNAC) as an inactive ingredient.	¶76	col. 2:10-14
...wherein the composition is administered such that the ratio between the plasma half-life in days...of the GLP-1 peptide and the dosing interval in days...is more than 2:1.	The alleged half-life is ~7 days and the instructed dosing interval is 1 day (once daily). The resulting ratio is 7:1, which is greater than 2:1.	¶77; ¶80	col. 5:26-34

Identified Points of Contention:

Scope and Factual Questions ('123 Patent): The infringement analysis for the '123 Patent will likely focus on factual evidence. A key question for the court will be whether Apotex's proposed product, on a weight-for-weight basis, actually contains "at least 60% (w/w)" of the SNAC salt as required by claim 9. While the complaint alleges the product is "identical or substantially identical" **Compl. ¶58**, this quantitative limitation will be a primary point of factual dispute and discovery.

Claim Construction and Method Claim Enforceability ('923 Patent): For the '923 Patent, a central issue may be the construction of "plasma half-life in humans." The analysis will question what evidence is required to establish this value and whether Apotex is bound by the data for Novo Nordisk's WEGOVY®. A second key legal question is one of enforceability: does instructing a "once daily" administration **Compl. ¶77** on a product label for a drug with a one-week half-life **Compl. ¶80** constitute inducement to infringe a claim defined by a mathematical ratio?

V. Key Claim Terms for Construction

For the '123 Patent

The Term: "at least 60% (w/w) of said salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid"

Context and Importance: This quantitative limitation is the core distinguishing feature of asserted claim 9. The infringement analysis will turn on whether Apotex's product meets this

specific threshold. Practitioners may focus on this term because it is a precise numerical value that is either met or not, making it a clear target for non-infringement arguments.

☐ **Intrinsic Evidence for Interpretation:** The patent itself provides the primary context.

☐ **Evidence for a Broader Interpretation:** The claim language itself is straightforward. The specification may provide examples of formulations that meet this threshold, which could be used to argue that any formulation meeting the number infringes, regardless of other properties
'123 Patent, col. 12:20-24

☐ **Evidence for a Narrower Interpretation:** An accused infringer might argue that this limitation should be read in the context of the specific examples provided in the patent, suggesting that the term implies not just the percentage but also the functional result achieved in those examples '123 Patent, e.g., Table 1

For the '923 Patent

☐ **The Term:** "the ratio between the plasma half-life in days in humans of the GLP-1 peptide and the dosing interval in days of said composition is more than 2:1"

☐ **Context and Importance:** This ratio is the central inventive concept of the claimed method. Its construction will be dispositive for infringement. Practitioners may focus on this term because it links a property of the drug substance ("plasma half-life") to an instruction for its use ("dosing interval"), raising questions about how each component is defined and proven.

☐ **Intrinsic Evidence for Interpretation:**

☐ **Evidence for a Broader Interpretation:** The patent broadly defines "plasma half-life" as the time to halve the plasma concentration after administration and provides a general method for its determination '923 Patent, col. 3:38-41 '923 Patent, col. 6:31-59 This supports an argument that any standard measurement confirming the half-life and any label instruction defining the interval can be used to calculate the ratio.

☐ **Evidence for a Narrower Interpretation:** The specification provides a specific example calculation: "Thus, when the plasma half-life of said GLP-1 peptide is e.g. 2 days in humans the dosing interval in days of said peptide is 1 or less" '923 Patent, col. 6:1-3 A defendant might argue that the term requires the specific calculation methodology and context disclosed, rather than any theoretical calculation.

VI. Other Allegations

☐ **Indirect Infringement:** The complaint alleges induced and contributory infringement of the method claims (e.g., in the '923 and '739 patents) Compl. ¶¶87 Compl. ¶180 The basis for these allegations is that Apotex's ANDA and its proposed product label will instruct, encourage, and recommend that physicians and patients administer the generic product in a manner that directly practices the steps of the patented methods, such as the specific dosing regimens Compl. ¶¶83-84 Compl. ¶176-177 The complaint also alleges the product has no substantial non-infringing uses Compl. ¶¶85 Compl. ¶178

☐ **Willful Infringement:** While the complaint does not use the word "willful," it lays the groundwork for such a claim by alleging that Apotex has "actual knowledge" of the asserted patents, citing their listing in the FDA's Orange Book Compl. ¶¶52 Compl. ¶75 Compl. ¶100 The complaint further states that Apotex's infringement is exceptional and seeks an award of attorneys' fees under 35 U.S.C. § 285, a remedy often associated with findings of willful infringement Compl. ¶¶69 Compl. ¶94 Compl. ¶116

VII. Analyst's Conclusion: Key Questions for the Case

□A central factual question will be one of **compositional identity**: across a "thicket" of seven patents with overlapping and highly specific claims, can Apotex demonstrate that its proposed generic product avoids infringing at least one claim from each patent? This will involve a granular, element-by-element comparison of Apotex's formulation and physical tablet characteristics against numerous patent limitations, such as the precise weight percentage of SNAC, the exclusion of binders, and specific tablet porosity metrics.

□A key legal question will be one of **induced infringement for method claims**: Does instructing a "once daily" administration on a product label for a drug with a well-established one-week half-life constitute sufficient affirmative action to find inducement of a method claim defined by a mathematical ratio of half-life to dosing interval? The court's interpretation of the requirements for proving specific intent to encourage infringement in the context of an ANDA "skinny label" strategy will be critical.

□A core validity question will concern **obviousness-type double patenting and obviousness**: Given the multiple, closely related patents-in-suit filed over several years, the case will likely examine whether the claims of the later patents are patentably distinct from those of the earlier patents. The court will need to determine if each successive patent, such as those claiming specific physical properties ('499 Patent) or minimalist formulations ('248 Patent), represents a non-obvious improvement over the foundational oral semaglutide-SNAC compositions.

Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 1 of 37 PageID: 1 Liza M. Walsh Jessica K. Formichella Lauren R. Malakoff Walsh Pizzi O'Reilly Falanga LLP Three Gateway Center 100 Mulberry Street, 15th Floor Newark, NJ 07102 (973) 757-1100 Attorneys for Plaintiffs Novo Nordisk Inc. and Novo Nordisk A/S IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF NEW JERSEY NOVO NORDISK INC. and NOVO NORDISK A/S, Plaintiffs, v. APOTEX INC., Defendant.)))))))))) C.A. No.

COMPLAINT Plaintiffs Novo Nordisk Inc. and Novo Nordisk A/S (collectively, "Novo Nordisk"), for their Complaint against Defendant Apotex Inc. ("Apotex"), allege as follows: THE PARTIES 1. Plaintiff Novo Nordisk Inc. is a corporation organized and existing under the laws of the State of Delaware, having its principal place of business at 800 Scudders Mill Road, Plainsboro, New Jersey 08536. 1 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 2 of 37 PageID: 2 2. Plaintiff Novo Nordisk A/S is an entity organized and existing under the laws of the

Kingdom of Denmark, having its principal place of business at Novo Allé, 2880 Bagsvaerd, Denmark. Novo Nordisk Inc. is an indirect, wholly owned subsidiary of Novo Nordisk A/S. 3. On information and belief, Apotex is a corporation organized and existing under the laws of Canada, having its principal place of business at 150 Signet Drive, North York, Toronto, M9L 1T9. On information and belief, Apotex is in the business of making and selling generic pharmaceutical products, which it distributes in the State of New Jersey and throughout the United States. NATURE OF THE ACTION 4. This action arises under the patent laws of the United States, Title 35, United States Code, § 100 et seq., including 35 U.S.C. §§ 271(a), (b), (c), and (e), arising from Apotex's submission of Abbreviated New Drug Application No. 221537 ("Apotex's ANDA") to the United States Food and Drug Administration ("FDA"), by which Apotex seeks approval of a generic version of Novo Nordisk's pharmaceutical product WEGOVY® (semaglutide) tablets, 1.5 mg, 4 mg, and 9 mg ("WEGOVY® tablets"), prior to the expiration of United States Patent Nos. 9,278,123 (the "'123 Patent"); 10,278,923 (the "'923 Patent"); 11,033,499 (the "'499 Patent"); 11,382,957 (the "'957 Patent"); 11,833,248 (the "'248 Patent"); 12,239,739 (the "'739 Patent"); and 12,396,953 (the "'953 Patent") (collectively, the "Asserted Patents"), attached hereto as Exhibits 2–8, which cover, inter alia, WEGOVY® tablets and/or their use. 5. Novo Nordisk A/S is the owner of all rights, title, and interest in the Asserted Patents. 6. Novo Nordisk Inc. is the holder of New Drug Application No. 218316 ("Novo Nordisk's NDA"), encompassing WEGOVY® tablets, which Novo Nordisk Inc. sells under the 2 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 3 of 37 PageID: 3 trade name WEGOVY®. Novo Nordisk Inc. holds the exclusive right to sell, distribute, and market WEGOVY® tablets in the United States. 7. The Asserted Patents are listed in FDA's Approved Drug Products with Therapeutic Equivalence Evaluations (commonly known as the "Orange Book") in connection with WEGOVY® tablets and the related NDA. NOVO NORDISK'S WEGOVY® TABLETS 8. The Prescribing Information for WEGOVY® tablets (the "WEGOVY® Label"), attached hereto as Exhibit 1, states that "WEGOVY is a glucagon-like peptide-1 (GLP-1) receptor agonist" and "WEGOVY tablets are indicated in combination with a reduced calorie diet and increased physical activity" "[t]o reduce the risk of major adverse CV events (CV death, non-fatal myocardial infarction, or non-fatal stroke) in adults with established CV disease and either obesity or overweight" and "[t]o reduce excess body weight and maintain weight reduction long term in adults with obesity, or in adults with overweight in the presence of at least one weight-related comorbid condition." Ex. 1 at 1. 9. WEGOVY® tablets are for oral use, to be administered once daily. Each tablet of WEGOVY® contains 1.5 mg, 4 mg, 9 mg, or 25 mg of semaglutide. Ex. 1 at 1. 10. The WEGOVY® Label instructs that WEGOVY® tablets should be administered according to a dose escalation schedule that includes initiating a dosage of 1.5 mg of semaglutide once daily for 30 days, increasing the dosage to 4 mg once daily for the next 30 days, then increasing the dosage to 9 mg once daily for the next 30 days, and then increasing the dosage to 25 mg once daily. Ex. 1 at 3. 11. The active ingredient in WEGOVY® tablets is semaglutide, which has the following structure: 3 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 4 of 37 PageID: 4 Ex. 1 at 8. 12. The WEGOVY® Label states that the half-life of semaglutide is approximately one week. Ex. 1 at 8. 13. The WEGOVY® Label lists the following as inactive ingredients in WEGOVY® tablets: "magnesium stearate and salcaprozate sodium (SNAC)." Ex. 1 at 8. APOTEX'S ANDA AND PARAGRAPH IV CERTIFICATION 14. On information and belief, Apotex submitted Apotex's ANDA under Section 505(j) of the Federal Food, Drug, and Cosmetic Act ("FFDCA"), i.e., 21 U.S.C. § 355(j), seeking approval to commercially manufacture, use, sell, offer to sell, distribute, and/or import a generic version of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), for oral administration pursuant to Apotex's ANDA ("Apotex's ANDA Product"). 15. On

information and belief, following any FDA approval of Apotex's ANDA, Apotex will manufacture, use, sell, offer to sell, distribute, and/or import Apotex's ANDA Product throughout the United States, including within New Jersey. 4 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 5 of 37 PageID: 5 16. On information and belief, Apotex's ANDA refers to and relies upon Novo Nordisk's NDA and contains data that, according to Apotex, demonstrate the bioequivalence of Apotex's ANDA Product and WEGOVY® tablets (1.5 mg, 4 mg, 9 mg). 17. On information and belief, Apotex made and included in Apotex's ANDA a certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (the "Paragraph IV Certification") that, in its opinion and to the best of its knowledge, the claims of six of the Asserted Patents, which are all listed in FDA's Orange Book in connection with WEGOVY® tablets and the related NDA, are invalid and/or not infringed. 18. On information and belief, Apotex made and included in Apotex's ANDA a certification under 21 U.S.C. § 355(j)(2)(A)(vii)(III) (the "Paragraph III Certification") that it will not launch its ANDA Product prior to the expiration of U.S. Patent Nos. 8,129,343 and 8,536,122, which are also listed in FDA's Orange Book in connection with WEGOVY® tablets and the related NDA. 19. Novo Nordisk received written notice of Apotex's ANDA and Paragraph IV Certification as to six of the Asserted Patents (the "Notice Letter"), dated April 29, 2026, along with an enclosed statement that is required to state all the factual and legal bases for Apotex's contention that the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Apotex's ANDA Product allegedly will not infringe any valid claim of the patents that Apotex included in its Paragraph IV Certification and/or that the claims of such patents are invalid and/or unenforceable (the "Detailed Statement"). Apotex's Detailed Statement, however, does not allege or provide any factual or legal bases to assert that any of the patents identified in the Notice Letter are unenforceable. Nor does it allege or provide any factual or legal bases to 5 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 6 of 37 PageID: 6 assert that all claims of the patents identified in the Notice Letter are not infringed by any of the dosage strengths of Apotex's ANDA Product apart from a challenge to the validity of such claims. 20. This action is being commenced within 45 days of receipt of the Notice Letter. 21. Apotex has infringed one or more claims of the Asserted Patents under 35 U.S.C. § 271(e)(2)(A) by filing Apotex's ANDA, including any amendments or supplements thereof, seeking FDA approval to commercially manufacture, use, offer for sale, sell, distribute in, and/or import into the United States Apotex's ANDA Product before the expiration of the Asserted Patents, including any extensions thereof. 22. Apotex will infringe one or more claims of the Asserted Patents under 35 U.S.C. §§ 271(a), (b), and/or (c) should Apotex engage in, induce, and/or contribute to the commercial manufacture, use, offer for sale, sale, distribution in, and/or importation into the United States of Apotex's ANDA Product before the expiration of the Asserted Patents, including any extensions thereof. JURISDICTION AND VENUE 23. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331 and 1338(a). 24. This Court has personal jurisdiction over Defendant Apotex by virtue of, inter alia, its presence in New Jersey; having conducted business in New Jersey; having derived revenue from conducting business in New Jersey; having previously consented to personal jurisdiction in this Court (see, e.g., Novo Nordisk Inc. v. Apotex Inc., No. 24-cv-9729 (D.N.J.); Amgen Inc. v. Apotex Inc., No. 22-cv-03827 (D.N.J.); Supernus Pharms., Inc. v. Apotex Inc., No. 22-cv-00322 (D.N.J.); Takeda Pharms. Am., Inc. v. Apotex Inc., No. 21-cv-12998 (D.N.J.); Celgene Corp. v. Apotex Inc., No. 19-cv-05806 (D.N.J.); Celgene Corp. v. Apotex Inc., No. 18-cv-16395 (D.N.J.); Celgene Corp. v. Hetero Labs Ltd., No. 17-cv-03387 (D.N.J.); Mitsubishi Tanabe Pharma Corp. 6 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 7 of 37 PageID: 7 v. Apotex Inc., No. 17-cv-05278 (D.N.J.); AstraZeneca AB v. Apotex Corp., No. 15-cv-08492 (D.N.J.); Bausch & Lomb Inc. v. Apotex Inc., No. 15-cv-03879

(D.N.J.); Novartis Pharm. Corp. v. Apotex Inc., No. 15-cv-03634 (D.N.J.); Merck Sharp & Dohme Corp. v. Apotex Inc., No. 15-cv- 02384 (D.N.J.); Patheon Softgels Inc. v. Apotex Inc., No. 17-cv-13819 (D.N.J.); Dexcel Pharma Techs. Ltd. v. Apotex Corp., No. 17-cv-02423 (D.N.J.); Boehringer Ingelheim Pharms., Inc. v. Apotex Inc., No. 18-cv-11350 (D.N.J.); and having taken advantage of the rights and protections provided by this Court, including having asserted counterclaims in this jurisdiction (see, e.g., Novo Nordisk Inc. v. Apotex Inc., No. 24-cv-9729 (D.N.J.); see also Apotex Inc. v. Shire LLC, No. 08- cv-03598 (D.N.J.); Apotex Inc. v. Pharm. Res., Inc., No. 06-cv-01153 (D.N.J.)). 25. On information and belief, Apotex intends to commercially manufacture, sell, offer to sell, use, distribute and/or import Apotex's ANDA Product, directly or indirectly, throughout the United States and in this District. On information and belief, if FDA approves the ANDA, the ANDA Product will, among other things, be marketed, distributed and sold in New Jersey, and/or prescribed by physicians practicing within New Jersey and/or dispensed by pharmacies located in New Jersey, all of which will have a substantial effect on New Jersey. Apotex's filing of Apotex's ANDA confirms this intention and further subjects Apotex to the specific personal jurisdiction of this Court. 26. Apotex is a foreign corporation that is not resident in the United States. Thus, venue is proper in this District pursuant to 28 U.S.C. §§ 1391(b), (c), and 1400(b). THE PATENTS-IN-SUIT U.S. Patent No. 9,278,123 27. The allegations above are incorporated herein by reference. 28. Novo Nordisk A/S is the owner of all rights, title, and interest in the '123 Patent, entitled "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2- 7 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 8 of 37 PageID: 8 Hydroxybenzoyl)Amino)Caprylic Acid." The United States Patent and Trademark Office ("USPTO") duly and legally issued the '123 Patent on March 8, 2016. The '123 Patent names Per Sauerberg, Simon Bjerregaard, and Flemming Seier Nielsen as inventors. All named inventors assigned the '123 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '123 Patent and sue for infringement thereof. A true and correct copy of the '123 Patent is attached to this Complaint as Exhibit 2. 29. The '123 Patent claims, among others, a solid composition for oral administration, comprising 5 to 20 mg of semaglutide and a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid. U.S. Patent No. 10,278,923 30. The allegations above are incorporated herein by reference. 31. Novo Nordisk A/S is the owner of all rights, title, and interest in the '923 Patent, entitled "Oral Dosing of GLP-1 Compounds." The USPTO duly and legally issued the '923 Patent on May 7, 2019. The '923 Patent names Flemming S. Nielsen and Per Sauerberg as inventors. All named inventors assigned the '923 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '923 Patent and sue for infringement thereof. A true and correct copy of the '923 Patent is attached to this Complaint as Exhibit 3. 32. The '923 Patent claims, among others, a method for treating diabetes and/or obesity in a subject in need of such treatment, comprising orally administering to said subject a therapeutically effective amount of a solid oral dosage form composition comprising a GLP-1 peptide that is from a group including semaglutide and has a plasma half-life in humans of at least 60 hours, an enhancer that is a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid, and wherein the composition is administered such that the ratio between the plasma half-life in days in humans of the GLP-1 peptide and the dosing interval in days of said composition is more than 2:1. 8 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 9 of 37 PageID: 9 U.S. Patent No. 11,033,499 33. The allegations above are incorporated herein by reference. 34. Novo Nordisk A/S is the owner of all rights, title, and interest in the '499 Patent, entitled "Tablet Formulation Comprising a GLP-1 Peptide and a Delivery Agent." The USPTO duly and legally issued the '499 Patent on June 15, 2021. The '499 Patent names Simon Bjerregaard Jensen, Per Sauerberg, Flemming S. Nielsen, Betty L. Pedersen, and Erik

Skibsted as inventors. All named inventors assigned the '499 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '499 Patent and sue for infringement thereof. A true and correct copy of the '499 Patent is attached to this Complaint as Exhibit 4. 35. The '499 Patent claims, among others, a tablet comprising a granulate comprising no more than 15% (w/w) GLP-1 peptide, wherein the GLP-1 peptide is a peptide; and at least 50% (w/w) salt of NAC; wherein said tablet has a bulk density of at least 1.0 g/cm³, a median pore diameter of no more than 1.5 µm, and a feature selected from the group consisting of a maximum pore diameter of no more than 4 µm, a crushing strength of 50–400 N, and a disintegration time of 22 minutes or less. U.S. Patent No.

11,382,957 36. The allegations above are incorporated herein by reference. 37. Novo Nordisk A/S is the owner of all rights, title, and interest in the '957 Patent, entitled "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid." The USPTO duly and legally issued the '957 Patent on July 12, 2022. The '957 Patent names Per Sauerberg, Simon Bjerregaard, and Flemming Seier Nielsen as inventors. All named inventors assigned the '957 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '957 Patent and sue for infringement thereof. A true and correct copy of the '957 Patent is attached to this Complaint as Exhibit 5. 9 Case 1:26-cv-06553 Document 1 Filed 06/04/26 Page 10 of 37 PageID:

10 38. The '957 Patent claims, among others, a solid composition for oral administration comprising a GLP-1 agonist, a salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid, and at least one excipient selected from the group consisting of a lubricant, binder, and filler, wherein the GLP-1 agonist is semaglutide, and wherein the composition comprises at least 60% (w/w) of said salt of N-(8-(2-hydroxybenzoyl)amino)caprylic acid. U.S. Patent No. 11,833,248 39. The allegations above are incorporated herein by reference. 40. Novo Nordisk A/S is the owner of all rights, title, and interest in the '248 Patent, entitled "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid." The USPTO duly and legally issued the '248 Patent on December 5, 2023. The '248 Patent names Betty Lomstein Pedersen and Birgitte Nissen as inventors. All named inventors assigned the '248 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '248 Patent and sue for infringement thereof. A true and correct copy of the '248 Patent is attached to this Complaint as Exhibit 6. 41. The '248 Patent claims, among others, a pharmaceutical composition consisting essentially of semaglutide, magnesium stearate, and SNAC, wherein the pharmaceutical composition comprises 2–5 mg of the magnesium stearate per 100 mg of the SNAC; and wherein the pharmaceutical composition does not comprise a binder or filler. U.S. Patent No. 12,239,739 42. The allegations above are incorporated herein by reference. 43. Novo Nordisk A/S is the owner of all rights, title, and interest in the '739 Patent, entitled "Oral Dosing of GLP-1 Compounds." The USPTO duly and legally issued the '739 Patent on March 4, 2025. The '739 Patent names Flemming S. Nielsen and Per Sauerberg as inventors. All named inventors assigned the '739 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '739 Patent and sue for infringement thereof. A true and correct copy of the '739

Patent is attached to this Complaint as Exhibit 7.

44. The '739 Patent claims, among others, a method for treating type 2 diabetes and/or reducing body weight in a subject in need of such treatment, comprising orally administering to the subject a therapeutically effective amount of a solid oral dosage form composition comprising a glucagon-like peptide-1 (GLP-1) peptide and an enhancer, wherein the GLP-1 peptide is

semaglutide and the enhancer is SNAC, semaglutide is the only GLP-1 peptide administered, the composition is administered daily for a period of 70 days, and the variability in plasma exposure of semaglutide is reduced when compared to a single dose of semaglutide.

U.S. Patent No. 12,396,953

45. The allegations above are incorporated herein by reference.

46. Novo Nordisk A/S is the owner of all rights, title, and interest in the '953 Patent, entitled "Solid Compositions Comprising a GLP-1 Agonist and a Salt of N-(8-(2-Hydroxybenzoyl)Amino)Caprylic Acid." The USPTO duly and legally issued the '953 Patent on August 26, 2025. The '953 Patent names Betty Lomstein Pedersen and Birgitte Nissen as inventors. All named inventors assigned the '953 Patent to Novo Nordisk A/S. Novo Nordisk has the right to enforce the '953 Patent and sue for infringement thereof. A true and correct copy of the '953 Patent is attached to this Complaint as Exhibit 8.

47. The '953 Patent claims, among others, a pharmaceutical composition comprising semaglutide, SNAC, and magnesium stearate, wherein the semaglutide is in the amount of 0.2 to 100 mg, and wherein the composition comprises 2–5 mg of the magnesium stearate per 100 mg of the SNAC, and wherein the SNAC is at least 95% (w/w) of the excipients of the composition.

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COUNT I

(INFRINGEMENT OF THE '123 PATENT)

48. The allegations above are incorporated herein by reference.

49. Apotex submitted Apotex's ANDA under § 505(j) of the FFDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '123 Patent, including any extensions thereof.

50. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '123 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '123 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

51. The '123 Patent is listed in the Orange Book for WEGOVY® tablets (9 mg).

52. Apotex has actual knowledge of the '123 Patent.

53. The WEGOVY® Label provides that WEGOVY® tablets are for oral use.

54. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.

55. The WEGOVY® Label states that each tablet of WEGOVY® (9 mg) contains 9 mg of semaglutide.

56. WEGOVY® tablets (9 mg) are covered by at least claim 9 of the '123 Patent.

57. Thus, any corresponding generic semaglutide tablets are covered by at least claim 9 of the '123 Patent.

58. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label and the WEGOVY® tablet composition, including as required by FDA, see 21 C.F.R. 12

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§§ 314.94(a)(5), 314.94(a)(8)(iv), and as such, the composition of Apotex's ANDA Product (9 mg) is identical or substantially identical to that of WEGOVY® tablets (9 mg).

59. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product (9 mg) has the same strength as WEGOVY® tablets (9 mg), see 21 C.F.R. § 314.94(a)(6), and as such, the composition of Apotex's ANDA Product (9 mg) is identical or substantially identical to that of WEGOVY® tablets (9 mg).

60. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product (9 mg) is bioequivalent to WEGOVY® tablets (9 mg), see 21 C.F.R. § 314.94(a)(7), and as such, the composition of Apotex's ANDA Product (9 mg) is identical or substantially identical to that of WEGOVY® tablets (9 mg).

61. Apotex has infringed at least claim 9 of the '123 Patent under 35 U.S.C. § 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product (9 mg), which is covered by at least claim 9 of the '123 Patent, before the expiration of the '123 Patent.

62. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product (9 mg) in a manner that would directly infringe at least claim 9 of the '123 Patent under 35 U.S.C. § 271(a).

63. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '123 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

64. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 9 of the '123 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

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65. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 9 of the '123 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product (9 mg) before the expiration of the '123 Patent under 35 U.S.C. § 271(a).

66. Novo Nordisk seeks an order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '123 Patent or any later expiration of extensions, adjustments, and exclusivities for the '123 Patent to which Novo Nordisk becomes entitled.

67. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing at least claim 9 of the '123 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

68. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '123 Patent is devoid of an objective good faith basis in the facts or the law.

69. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

70. To the extent Apotex commercializes Apotex's ANDA Product (9 mg) prior to the expiration of the '123 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT II

(INFRINGEMENT OF THE '923 PATENT)

71. The allegations above are incorporated herein by reference.

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72. Apotex submitted Apotex's ANDA under § 505(j) of the FDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '923 Patent, including any extensions thereof.

73. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '923 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '923 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

74. The '923 Patent is listed in the Orange Book for WEGOVY® tablets.

75. Apotex has actual knowledge of the '923 Patent.

76. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.

77. The WEGOVY® Label instructs physicians, prescribers, and/or patients that WEGOVY® tablets are to be administered once daily by oral tablet.

78. The WEGOVY® Label instructs physicians, prescribers, and/or patients that "WEGOVY is a glucagon-like peptide-1 (GLP-1) receptor agonist" and "WEGOVY tablets are indicated in combination with a reduced calorie diet and increased physical activity" "[t]o reduce the risk of major adverse CV events (CV death, non-fatal myocardial infarction, or non-fatal stroke) in adults with established CV disease and either obesity or overweight" and "[t]o reduce excess body weight and maintain weight reduction long term in adults with obesity, or in adults with overweight in the presence of at least one weight-related comorbid condition."

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79. The WEGOVY® Label instructs physicians, prescribers, and/or patients to administer WEGOVY® tablets according to a dose escalation schedule that includes initiating a dosage of 1.5 mg of semaglutide once daily for 30 days, increasing the dosage to 4 mg once daily for the next 30 days, then increasing the dosage to 9 mg once daily for the next 30 days, and then increasing the dosage to 25 mg once daily.

80. The WEGOVY® Label states that the half-life of semaglutide is approximately one week.

81. The use of WEGOVY® tablets in accordance with the WEGOVY® label is covered by at least claim 14 of the '923 Patent.

82. Thus, the use of any corresponding generic semaglutide tablets in accordance with the WEGOVY® Label is covered by at least claim 14 of the '923 Patent.

83. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label, including as required by FDA, see 21 C.F.R. § 314.94(a)(8)(iv), and therefore instructs, recommends, encourages, promotes, and/or suggests that physicians, prescribers, and/or patients infringe at least claim 14 of the '923 Patent.

84. On information and belief, if Apotex's ANDA is approved, physicians, prescribers, and/or patients will follow the instructions in the proposed label for Apotex's ANDA Product and thereby infringe at least claim 14 of the '923 Patent.

85. WEGOVY® tablets and any corresponding generic semaglutide tablets are not staple articles of commerce and have no substantial approved uses that do not infringe at least claim 14 of the '923 Patent. On information and belief, Apotex's ANDA Product is not a staple article of commerce and has no substantial uses that do not infringe at least claim 14 of the '923 Patent.

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86. Apotex has infringed at least claim 14 of the '923 Patent under 35 U.S.C. § 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product, which is covered by at least claim 14 of the '923 Patent, before the expiration of the '923 Patent.

87. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that, when used in accordance with the instructions of the proposed label for Apotex's ANDA Product, would directly infringe, induce infringement, and/or contribute to infringement of at least claim 14 of the '923 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

88. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '923 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

89. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 14 of the '923 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

90. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 14 of the '923 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '923 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

91. Novo Nordisk seeks an order pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '923 Patent or any later expiration of extensions, adjustments, and exclusivities for the '923 Patent to which Novo Nordisk becomes entitled.

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92. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing, actively inducing the infringement of, and/or contributing to the infringement of at least claim 14 of the '923 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

93. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '923 Patent is devoid of an objective good faith basis in the facts or the law.

94. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

95. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '923 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT III

(INFRINGEMENT OF THE '499 PATENT)

96. The allegations above are incorporated herein by reference.

97. Apotex submitted Apotex's ANDA under § 505(j) of the FFDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '499 Patent, including any extensions thereof.

98. Apotex has infringed one or more claims of the '499 Patent under 35 U.S.C. § 271(e)(2)(A) by virtue of the filing of Apotex's ANDA seeking approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '499 Patent.

99. The '499 Patent is listed in the Orange Book for WEGOVY® tablets.

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100. Apotex has actual knowledge of the '499 Patent.
101. The WEGOVY® Label provides that WEGOVY® tablets are for oral use.
102. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY®.
103. The WEGOVY® Label states that each tablet of WEGOVY® contains multiple dosage strengths, including dosage strengths with 1.5 mg, 4 mg, or 9 mg of semaglutide.
104. WEGOVY® tablets are covered by at least claim 1 of the '499 Patent.
105. Thus, any corresponding generic semaglutide tablets are covered by at least claim 1 of the '499 Patent.
106. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label and the WEGOVY® tablet composition, including as required by FDA, see 21 C.F.R. §§ 314.94(a)(5), 314.94(a)(8)(iv), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
107. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product has the same strengths as WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(6), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
108. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product is bioequivalent to WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(7), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
109. Apotex has infringed at least claim 1 of the '499 Patent under 35 U.S.C. § 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for
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Apotex's ANDA Product, which is covered by at least claim 1 of the '499 Patent, before the expiration of the '499 Patent.

110. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that would directly infringe at least claim 1 of the '499 Patent under 35 U.S.C. § 271(a).

111. Novo Nordisk seeks an order requiring that Apotex amend any Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '499 Patent, as

provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

112. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 1 of the '499 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

113. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 1 of the '499 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '499 Patent under 35 U.S.C. § 271(a).

114. Novo Nordisk seeks an order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '499 Patent or any later expiration of extensions, adjustments, and exclusivities for the '499 Patent to which Novo Nordisk becomes entitled.

115. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing at least claim 1 of the '499 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law. 116. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

117. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '499 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT IV

(INFRINGEMENT OF THE '957 PATENT)

118. The allegations above are incorporated herein by reference.

119. Apotex submitted Apotex's ANDA under § 505(j) of the FDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '957 Patent, including any extensions thereof.

120. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '957 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '957 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

121. The '957 Patent is listed in the Orange Book for WEGOVY® tablets.
122. Apotex has actual knowledge of the '957 Patent.
123. The WEGOVY® Label provides that WEGOVY® tablets are for oral use.
124. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.
125. The WEGOVY® Label states that each tablet of WEGOVY® contains multiple dosage strengths, including dosage strengths with 1.5 mg, 4 mg, or 9 mg of semaglutide.

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126. WEGOVY® tablets are covered by at least claim 1 of the '957 Patent.
127. Thus, any corresponding generic semaglutide tablets are covered by at least claim 1 of the '957 Patent.
128. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label and the WEGOVY® tablet composition, including as required by FDA, see 21 C.F.R. §§ 314.94(a)(5), 314.94(a)(8)(iv), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
129. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product has the same strengths as WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(6), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
130. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product is bioequivalent to WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(7), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).
131. Apotex has infringed at least claim 1 of the '957 Patent under 35 U.S.C. § 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product, which is covered by at least claim 1 of the '957 Patent, before the expiration of the '957 Patent.
132. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that would directly infringe at least claim 1 of the '957 Patent under 35 U.S.C. § 271(a).

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133. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '957 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

134. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 1 of the '957 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

135. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 1 of the '957 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '957 Patent under 35 U.S.C. § 271(a).

136. Novo Nordisk seeks an order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '957 Patent or any later expiration of extensions, adjustments, and exclusivities for the '957 Patent to which Novo Nordisk becomes entitled.

137. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing at least claim 1 of the '957 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

138. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '957 Patent is devoid of an objective good faith basis in the facts or the law.

139. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

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140. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '957 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT V

(INFRINGEMENT OF THE '248 PATENT)

141. The allegations above are incorporated herein by reference.

142. Apotex submitted Apotex's ANDA under § 505(j) of the FFDCA to obtain approval

to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '248 Patent, including any extensions thereof.

143. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '248 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '248 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

144. The '248 Patent is listed in the Orange Book for WEGOVY® tablets.

145. Apotex has actual knowledge of the '248 Patent.

146. The WEGOVY® Label provides that WEGOVY® tablets are for oral use.

147. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.

148. The WEGOVY® Label states that each tablet of WEGOVY® contains multiple dosage strengths, including dosage strengths with 1.5 mg, 4 mg, or 9 mg of semaglutide.

149. WEGOVY® tablets are covered by at least claim 1 of the '248 Patent.

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150. Thus, any corresponding generic semaglutide tablets are covered by at least claim 1 of the '248 Patent.

151. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label and the WEGOVY® tablet composition, including as required by FDA, see 21 C.F.R. §§ 314.94(a)(5), 314.94(a)(8)(iv), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

152. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product has the same strengths as WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(6), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

153. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product is bioequivalent to WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(7), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

154. Apotex has infringed at least claim 1 of the '248 Patent under 35 U.S.C.

§ 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product, which is covered by at least claim 1 of the '248 Patent, before the expiration of the '248 Patent.

155. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that would directly infringe at least claim 1 of the '248 Patent under 35 U.S.C. § 271(a).

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156. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '248 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

157. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 1 of the '248 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

158. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 1 of the '248 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '248 Patent under 35 U.S.C. § 271(a).

159. Novo Nordisk seeks an order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '248 Patent or any later expiration of extensions, adjustments, and exclusivities for the '248 Patent to which Novo Nordisk becomes entitled.

160. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing at least claim 1 of the '248 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

161. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '248 Patent is devoid of an objective good faith basis in the facts or the law.

162. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

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163. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '248 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT VI

(INFRINGEMENT OF THE '739 PATENT)

164. The allegations above are incorporated herein by reference.

165. Apotex submitted Apotex's ANDA under § 505(j) of the FDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '739 Patent, including any extensions thereof.

166. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '739 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '739 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

167. The '739 Patent is listed in the Orange Book for WEGOVY® tablets.

168. Apotex has actual knowledge of the '739 Patent.

169. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.

170. The WEGOVY® Label instructs physicians, prescribers, and/or patients that WEGOVY® tablets are to be administered once daily by oral tablet.

171. The WEGOVY® Label instructs physicians, prescribers, and/or patients that "WEGOVY is a glucagon-like peptide-1 (GLP-1) receptor agonist" and "WEGOVY tablets are indicated in combination with a reduced calorie diet and increased physical activity" "[t]o reduce

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the risk of major adverse CV events (CV death, non-fatal myocardial infarction, or non-fatal stroke) in adults with established CV disease and either obesity or overweight" and "[t]o reduce excess body weight and maintain weight reduction long term in adults with obesity, or in adults with overweight in the presence of at least one weight-related comorbid condition."

172. The WEGOVY® Label instructs physicians, prescribers, and/or patients to

administer WEGOVY® tablets according to a dose escalation schedule that includes initiating a dosage of 1.5 mg of semaglutide once daily for 30 days, increasing the dosage to 4 mg once daily for the next 30 days, then increasing the dosage to 9 mg once daily for the next 30 days, and then increasing the dosage to 25 mg once daily.

173. The WEGOVY® Label states that the half-life of semaglutide is approximately one week.

174. The use of WEGOVY® tablets in accordance with the WEGOVY® Label is covered by at least claim 1 of the '739 Patent.

175. Thus, the use of any corresponding generic semaglutide tablets in accordance with the WEGOVY® Label is covered by at least claim 1 of the '739 Patent.

176. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label, including as required by FDA, see 21 C.F.R. § 314.94(a)(8)(iv), and therefore instructs, recommends, encourages, promotes, and/or suggests that physicians, prescribers, and/or patients infringe at least claim 1 of the '739 Patent.

177. On information and belief, if Apotex's ANDA is approved, physicians, prescribers, and/or patients will follow the instructions in the proposed label for Apotex's ANDA Product and thereby infringe at least claim 1 of the '739 Patent.

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178. WEGOVY® tablets and any corresponding generic semaglutide tablets are not staple articles of commerce and have no substantial approved uses that do not infringe at least claim 1 of the '739 Patent. On information and belief, Apotex's ANDA Product is not a staple article of commerce and has no substantial uses that do not infringe at least claim 1 of the '739 Patent.

179. Apotex has infringed at least claim 1 of the '739 Patent under 35 U.S.C. § 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product, which is covered by at least claim 1 of the '739 Patent, before the expiration of the '739 Patent.

180. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that, when used in accordance with the instructions of the proposed label for Apotex's ANDA Product, would directly infringe, induce infringement, and/or contribute to infringement of at least claim 1 of the

'739 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

181. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '739 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

182. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 1 of the '739 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

183. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 1 of the '739 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '739 Patent under 35 U.S.C. §§ 271(a), (b), and/or (c).

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184. Novo Nordisk seeks an order pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '739 Patent or any later expiration of extensions, adjustments, and exclusivities for the '739 Patent to which Novo Nordisk becomes entitled.

185. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing, actively inducing the infringement of, and/or contributing to the infringement of at least claim 1 of the '739 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

186. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '739 Patent is devoid of an objective good faith basis in the facts or the law.

187. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

188. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '739 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

COUNT VII

(INFRINGEMENT OF THE '953 PATENT)

189. The allegations above are incorporated herein by reference.

190. Apotex submitted Apotex's ANDA under § 505(j) of the FDCA to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '953 Patent, and any extensions thereof.

191. The Notice Letter states that Apotex's ANDA was submitted to obtain approval to commercially manufacture, use, offer to sell, sell, distribute, and/or import Apotex's ANDA Product before the expiration of the '953 Patent. The Notice Letter represents that Apotex's ANDA was submitted with a Paragraph IV Certification that the '953 Patent is "invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, offer for sale, and/or importation of the drug products" described in Apotex's ANDA.

192. The '953 Patent is listed in the Orange Book for WEGOVY® tablets.

193. Apotex has actual knowledge of the '953 Patent.

194. The WEGOVY® Label provides that WEGOVY® tablets are for oral use.

195. The WEGOVY® Label identifies the active ingredient as semaglutide and the inactive ingredients as SNAC and magnesium stearate for WEGOVY® tablets.

196. The WEGOVY® Label states that each tablet of WEGOVY® contains multiple dosage strengths, including dosage strengths with 1.5 mg, 4 mg, or 9 mg of semaglutide.

197. WEGOVY® tablets are covered by at least claim 1 of the '953 Patent.

198. Thus, any corresponding generic semaglutide tablets are covered by at least claim 1 of the '953 Patent.

199. On information and belief, Apotex's ANDA essentially copies the WEGOVY® Label and the WEGOVY® tablet composition, including as required by FDA, see 21 C.F.R. §§ 314.94(a)(5), 314.94(a)(8)(iv), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

200. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product has the same strengths as WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R.

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§ 314.94(a)(6), and as such, the composition of Apotex's ANDA Product is identical or substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

201. On information and belief, Apotex's ANDA will purport to show that Apotex's ANDA Product is bioequivalent to WEGOVY® tablets (1.5 mg, 4 mg, 9 mg), see 21 C.F.R. § 314.94(a)(7), and as such, the composition of Apotex's ANDA Product is identical or

substantially identical to that of WEGOVY® tablets (1.5 mg, 4 mg, 9 mg).

202. Apotex has infringed at least claim 1 of the '953 Patent under 35 U.S.C.

§ 271(e)(2)(A) by its submission of Apotex's ANDA to FDA seeking to obtain approval for Apotex's ANDA Product, which is covered by at least claim 1 of the '953 Patent, before the expiration of the '953 Patent.

203. On information and belief, if Apotex's ANDA is approved, Apotex will make, use, offer for sale, sell, distribute, and/or import Apotex's ANDA Product in a manner that would directly infringe at least claim 1 of the '953 Patent under 35 U.S.C. § 271(a).

204. Novo Nordisk seeks an order requiring that Apotex amend its Paragraph IV Certification in Apotex's ANDA to a Paragraph III Certification as to the '953 Patent, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3).

205. Novo Nordisk seeks an order declaring that Apotex has infringed at least claim 1 of the '953 Patent by submitting Apotex's ANDA pursuant to 35 U.S.C. § 271(e)(2)(A).

206. Novo Nordisk seeks an order declaring that Apotex will infringe at least claim 1 of the '953 Patent by commercially manufacturing, using, offering to sell, selling, distributing, and/or importing Apotex's ANDA Product before the expiration of the '953 Patent under 35 U.S.C. § 271(a).

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207. Novo Nordisk seeks an order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA be a date that is not earlier than the expiration of the '953 Patent or any later expiration of extensions, adjustments, and exclusivities for the '953 Patent to which Novo Nordisk becomes entitled.

208. Novo Nordisk will be irreparably harmed if Apotex is not enjoined from infringing at least claim 1 of the '953 Patent. Pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, Novo Nordisk is entitled to a permanent injunction against further infringement. Novo Nordisk does not have an adequate remedy at law.

209. On information and belief, Apotex's Detailed Statement setting forth the purported factual and legal bases for its opinion regarding infringement and validity of the '953 Patent is devoid of an objective good faith basis in the facts or the law.

210. This case is exceptional, and Novo Nordisk is entitled to attorneys' fees pursuant to 35 U.S.C. § 285.

211. To the extent Apotex commercializes Apotex's ANDA Product prior to the expiration of the '953 Patent, Novo Nordisk will also be entitled to damages under 35 U.S.C. §§ 271(e)(4)(C) and 284.

PRAYER FOR RELIEF

WHEREFORE, Novo Nordisk respectfully requests that this Court enter judgment in their favor against Apotex and grant the following relief:

A. A judgment that Apotex has infringed one or more claims of each of the Asserted Patents under 35 U.S.C. § 271(e)(2)(A) by submitting to FDA Apotex's ANDA, including any amendments or supplements thereof, to obtain approval for the commercial manufacture, use, offer for sale, sale, distribution in, and/or importation into the United States of Apotex's ANDA Product

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before the expiration of the Asserted Patents, or any later period of exclusivity to which Novo Nordisk is or may become entitled;

B. A judgment declaring that Apotex will directly infringe, contribute to the direct infringement of, and/or induce the direct infringement of one or more claims of each of the Asserted Patents under 35 U.S.C. §§ 271(a), (b), and/or (c) if it markets, manufactures, uses, offers for sale, sells, distributes in, and/or imports into the United States Apotex's ANDA Product before the expiration of the Asserted Patents, or any later period of exclusivity to which Novo Nordisk is or may become entitled;

C. An order requiring that Apotex amend its Paragraph IV Certification to a Paragraph III Certification as to the Asserted Patents, as provided in 21 C.F.R. § 314.94(a)(12)(i)(A)(3);

D. An order, pursuant to 35 U.S.C. § 271(e)(4)(A), providing that the effective date of any FDA approval of Apotex's ANDA for Apotex's ANDA Product be a date that is not earlier than the latest date of the expiration of the Asserted Patents or any later period of exclusivity to which

Novo Nordisk is or may become entitled;

E. An order, pursuant to 35 U.S.C. §§ 271(e)(4)(B) and 283, enjoining Apotex, its officers, agents, servants, employees, attorneys, affiliates, divisions, subsidiaries, and those persons in active concert or participation with any of them, from infringing the Asserted Patents and/or contributing to or inducing anyone to do the same, including the manufacture, use, offer to sell, sale, distribution, and/or importation of any current or future versions of the product described

in Apotex's ANDA, before the expiration of the Asserted Patents, including any applicable extensions, adjustments, and exclusivities;

F.

If Apotex commercially manufactures, uses, offers to sell, sells, or distributes in the United States and/or imports into the United States the ANDA Product prior to the expiration of

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the Asserted Patents, including any applicable extensions, adjustments, and exclusivities, a judgment pursuant to 35 U.S.C. §§ 271(e)(4)(C) and 284 awarding Novo Nordisk monetary relief, together with an assessment of pre-judgment and post-judgment interest;

G. An award to Novo Nordisk of its attorneys' fees incurred in connection with this lawsuit pursuant to 35 U.S.C. § 285;

H. An award to Novo Nordisk of its costs and expenses in this action; and

I.

Such other and further relief as this Court may deem just and proper.

Dated: June 4, 2026

/s/ Liza M. Walsh

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LOCAL RULE 11.2 CERTIFICATION

I hereby certify that, to the best of my knowledge, the matter in controversy in this action is related to the following pending litigation in this District, wherein the '123, '923, '499, '957, '248, '739, and '953 Patents have been asserted against Defendant:

Novo Nordisk Inc. et al. v. Apotex Inc., No. 24-9729-RMB-AMD (D.N.J.) (consolidated)

I hereby certify that, to the best of my knowledge, other than the above-listed proceedings, the matter in controversy is not the subject of or related to any other pending litigations in any court, administrative proceeding, or arbitration proceeding, nor are there any non-parties known to Plaintiffs that should be joined to this action.

Dated: June 4, 2026

/s/ Liza M. Walsh

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LOCAL RULE 201.1 CERTIFICATION

I hereby certify that the above-captioned matter is not subject to compulsory arbitration in that the Plaintiffs seek, inter alia, injunctive relief.

Dated: June 4, 2026

/s/ Liza M. Walsh

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